EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 23551/08
CITIZENS LABOUR RIGHTS PROTECTION LEAGUE
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 7 March 2019 as a Committee composed of:

Síofra O'Leary, *President,*
Mārtiņš Mits,
Lado Chanturia, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 21 April 2008,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant association was represented by the chair of its executive committee, Mr S. Mammadov.

On 20 November 2015 the applicant's complaints under Articles 6 and 11 of the Convention concerning the authorities' refusal to hold demonstrations were communicated to the Azerbaijani Government ("the Government"), who were represented by their Agent, Mr Ç. Asgarov.

The Azerbaijani Government submitted their written observations on the admissibility and merits of the application on 16 March 2016.

By letter of 21 April 2016, the applicant's representative, without submitting any written observations in reply to those of the Government or any claims for just satisfaction under Article 41 of the Convention, informed the Court of the following:

> "Bearing in mind that certain amendments to the Law "On freedom of assembly" which were adopted on 30 May 2008, I consider that the problems which led to the violation of the association's right to freedom to peaceful assembly were eliminated. Accordingly, I agree to secure the friendly settlement with the Government if the

latter admit that the provisions of the Law, which were in force at the material time, did not offer the possibility to hold peaceful assembly."

On 26 May 2016 the Government submitted in response that it accepted the applicant's proposal and acknowledged that "certain provisions of national legislation concerning the issue of holding a peaceful assembly, which had been in force at the material time, had not been in line with the requirements of Article 11 of the Convention and had not corresponded to the Azerbaijani Government's commitments before the Council of Europe".

On 11 December 2018 the applicant's representative further confirmed to the Court that he considered the matter resolved and did not wish to pursue his application.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue the application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 28 March 2019.

Liv Tigerstedt Acting Deputy Registrar	Síofra O'Leary President